

Whangarei District Council Meeting Minutes

Date: Thursday, 29 August, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes (Teams)
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance

Cr Gavin Benney

Scribe

C Brindle (Senior Democracy Adviser)

Administration

- Meeting livestreamed
- Members of public/press recording
- Supplementary Reports
 - Confidential Items 1.10 & 1.11

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a prayer/karakia.

3. Apology / Kore Tae Mai

Cr Patrick Holmes (late arrival)

Moved By Cr Marie Olsen

Seconded By Cr Paul Yovich

That the apology be sustained.

Carried

Cr Gavin Benney (leave of absence)

4. **Public Forum / Huihuinga-a-tangata**

Tim Howard, Northland Urban Rural Mission – In support of retaining Maori Wards

Delaraine Armstrong, on behalf of Te Kārearea Hapū Appointed Caucus – in support of retaining Maori Wards

John Bain – Democracy

Frank Newman – Democracy.

5. **Confirmation of Minutes of Previous Meeting of the Whangarei District Council / Whakatau Meneti**

5.1 **Minutes Whangarei District Council Meeting held 25 July 2024**

Moved By Cr Paul Yovich

Seconded By Cr Simon Reid

That the minutes of the Whangarei District Council meeting held on Thursday 25 July 2024, including the confidential section, having been circulated, be taken as read and now confirmed and adopted as a true and correct record of proceedings of that meeting.

Carried

6. **Decision Reports / Whakatau Rīpoata**

6.1 **Changes to Local Government Electoral Legislation and Decision on the Whangarei District Māori Ward for the 2025 Local Election**

Moved By Cr Paul Yovich

Seconded By Cr Marie Olsen

That the Council disestablishes the Whangarei District Māori Ward to take effect from the 2025 Local Election and reverts to the representation arrangements in place for the 2019 Local Elections.

On the motion being put Cr Connop called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		

Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich	X		
Results	4	9	0

The Motion was Lost (4 to 9)

Cr Connop gave notice that if the motion was lost he would move a further motion.

Further motion

Moved By Cr Nicholas Connop

Seconded By Cr Deborah Harding

That the Council retains the Whangarei District Māori Ward for the 2025 Local Election and conducts a binding poll alongside the 2025 Local Election to determine whether Māori wards will be in place for the 2028 and 2031 Local Elections.

Procedural Motion

Moved By Cr Simon Reid

Seconded By Cr Paul Yovich

That the motion now be put.

On the procedural motion being put Cr Peters called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Jayne Golightly		X	
Cr Phil Halse		X	
Cr Deborah Harding		X	
Cr Patrick Holmes	X		
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	
Cr Paul Yovich	X		
Results	5	8	0

**The Procedural Motion was Lost (8 to 5)
The Motion was Carried**

Cr Yovich requested his vote against the motion be recorded.

A break was taken from 10.56am to 11.08am following Item 6.1.

Cr's Holmes and Ruka did not re-join the meeting immediately following the break.

6.2 Proposed Temporary Road Closure - Whangarei Fireworks Spectacular

Moved By Cr Marie Olsen

Seconded By Cr Simon Reid

That Whangārei District Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Whangarei Fireworks Spectacular on the following date in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 2nd November 2024

Okara Drive, from the roundabout at Okara Drive and Porowini Ave to the roundabout at Okara Drive and Port Road.

Period of Closure: 2pm to 10pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 meters from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

Cr Ruka re-joined the meeting at 11.10am following Item 6.2.

6.3 Proposed Temporary Road Closure - Dress for Success, Walkin Wardrobe Event 2024

Moved By Cr Carol Peters

Seconded By His Worship the Mayor

That Whangārei District Council:

1. Approves the proposal to temporarily close the following roads to ordinary traffic for the Walkin Wardrobe event on the following date

in accordance with the Transport (Vehicular Traffic Road Closure) Regulations 1965.

Saturday 19th October 2024

Butter Factory Lane, from number 10 Butter Factory Lane to number 12 Butter Factory Lane.

Period of Closure: 7am to 5pm

2. Approves the proposal to temporarily close the side roads off the roads to be closed for up to 100 metres from the intersection for safety purposes.
3. Delegates to the Chair of the Infrastructure Committee and General Manager Infrastructure the power to give public notice of these proposed temporary closures, to consider any objections and to either approve, cancel or amend any or all of the temporary road closures if applicable.

Carried

6.4 Update on Community Safety Initiatives and Impacts to Council from Graffiti and Vandalism in the District

Moved By His Worship the Mayor

Seconded By Cr Simon Reid

That the Council:

1. Receives the report.
2. Acknowledges the direct financial costs to council of the impacts of graffiti and vandalism on council assets the district.
3. Acknowledges anti-social behaviours are directly affecting the community and endorses the actions undertaken by council staff and contractors in response to these impacts.
4. Endorses the council community safety work programme and acknowledges the current limitations of that programme.

Carried

6.5 Alcohol Control Bylaw - Statement of Proposal

Moved By Cr Carol Peters

Seconded By Cr Nicholas Connop

That Council:

1. Determines that the proposed amended Alcohol Control Bylaw (the Bylaw, included in Attachment 1):
 - a. is the most appropriate form of bylaw;

- b. does not give rise to any implications under, and is not inconsistent with, the New Zealand Bill of Rights Act 1990;
- 2. Adopts the Statement of Proposal (Attachment 1), including the proposed amended Bylaw and the alcohol ban areas and operative times as per Option 2, for public consultation;
- 3. Authorises the Chief Executive to approve any necessary minor drafting or presentation amendments to the Statement of Proposal to correct errors or omissions, or to reflect decisions made by Council at this meeting, prior to final printing and publication.

Carried

Declaration of Interest:

Cr Reid declared an interest as the Vice President of a licensed premises.

6.6 Delegations Policy and Statutory Delegation Review August 2024

Moved By Cr Ken Couper

Seconded By Cr Simon Reid

That the Council:

- 1. Rescind all previous statutory delegations contained within the Delegations Register adopted on 29 November 2020 and subsequent updates to that delegation register.
- 2. Adopt the updated Delegations Policy as provided in Attachment 1.
- 3. Adopt the reviewed and updated Delegations Register, for statutory delegations, as provided in Attachment 2.

Carried

Cr Halse requested his vote against be recorded.

6.7 Financial Delegations for Emergency Operations Centre Roles August 2024

Moved By Cr Ken Couper

Seconded By Cr Nicholas Connop

That the Council:

- 1. Notes the recommendation made by the Community Development Committee on 20 April 2023 in relation to financial delegations for Coordinated Incident Management System Managers (CIMS).

AND

- 2. Approves Delegates Financial Authority to spend up to \$20,000 to the following Emergency Operations Centre CIMS Managers:

Logistics Planning Manager

Intelligence Manager
 Public Information manager
 Welfare Manager
 Operational Manager
 Response Manager.

AND

3. Approves the change in Delegation Financial Authority from \$2,000 to \$20,000 for the Civil Defence Emergency Management Specialist role.

AND

4. Notes these delegations will only come into effect upon activation of the Emergency Operations Centre(EOC).

Carried

Cr Holmes re-joined the meeting at 11.37am during Item 6.7.

6.8 Local Water Done Well Update - August 2024

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council:

1. Notes the report;
2. Notes updated information regarding the (Local Government Water Services Preliminary Arrangements) Bill.

Carried

6.9 Revocation of Local Purpose (Water Supply) Reserve at Whau Valley Road

Moved By Cr Simon Reid

Seconded By His Worship the Mayor

That the Council:

1. On 23 November 2023 Council approved notification of Council's intention to revoke the reserve status of Lot 1 DP 427274 as the land is no longer required for water supply purposes.
2. Notes that no formal objections were received following the process under section 24(2)(c) of the Reserves Act 1977; and
3. Approves, subject to ratification of the Minister, the revocation of the reserve status of Lot 1 DP 427274;
4. Approves the sale of Lot 1 DP 427274 and authorizes the Chief Executive to enter into the necessary arrangements on behalf of

Council to complete the property sale to the person from whom the land was originally acquired pursuant to section 40 of the Public Works Act.

Carried

Cr Harding requested her abstention from voting on Item 6.9 be recorded.

6.10 Whangarei Art Trust Deed of Guarantee Access Request 2024-2025

Moved By Cr Carol Peters

Seconded By Cr Phil Halse

That the Council:

1. Notes the Trust have followed the requirements set out in the Trust Deed and the Deed of Guarantee and Indemnity.
2. Notes that the remaining guarantee is \$450,000, made up of original guarantee funds.
3. Approves providing up to \$450,000 of the remaining Guarantee funds in the 2024-2025 financial year to support Hundertwasser Art Centre operations for any financial deficit should it be required.
4. Notes that if \$450,000 were to be released and all funds used during 2024-2025 financial year above in item 3, the guarantee will have a \$0 balance and the Deed of Guarantee would cease. Any remaining funds in the Guarantee at the end of the financial year would be carried into the next financial year.
5. Council requests the Whangarei Art Trust seek additional funding sources including external funding and implementation of their own fundraising activities.

On the motion being put Cr Yovich called for a division:

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Simon Reid		X	
Cr Phoenix Ruka	X		

Cr Paul Yovich

X

Results**6****4****0****The Motion was Carried (6 to 4)***Cr Peters left the meeting at 11.58am during discussion on Item 6.10.**Cr Holmes was off-line during the voting on Item 6.10.**Declaration of Interest:**Cr Couper declared a conflict of interest. Cr Couper withdrew from the table taking not part in discussions or voting on Item 6.10.***Extra ordinary business**

Subsequent to the agenda being circulated Items 1.10 and Item 1.11 relating to the Chief Executive's employment arrangements, were distributed separately but not within the timeframe specified in LGOIMA. Therefore a resolution of council is required.

The report was not included in the agenda for the reason that the information required to finalise the reports only recently became available.

Council are asked to consider these reports at today's meeting to enable any employment arrangements to be finalized.

Moved By His Worship the Mayor**Seconded By** Cr Scott McKenzie

That Item 1.10 and 1.11 be considered at today's meeting.

Carried**7. Public Excluded Business / Rāhui Tangata****Moved By** Cr Simon Reid**Seconded By** Cr Paul Yovich

That the public be excluded from the following parts of proceedings of this meeting. The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 25 July 2024	Good reason to withhold information exists under Section 7	Section 48(1)(a)

1.2	Water Supply Maintenance Contract 14032	Local Government Official Information and Meetings Act 1987	
1.3	Appointment Risk and Audit Committee Chairperson		
1.4	Infrastructure as a Service Contract		
1.5	Property Purchase Hikurangi		
1.6	Land Sale and Legalisation Otuhi Road		
1.7	Request to stop Orua Rd, Bream Bay Village		
1.8	Development Proposal Dent Street		
1.9	Notice of Motion		
1.10	CE's Performance Review 2023/2024 and Annual Review of Remuneration		
1.11	CE's Performance Goals 2024/2025		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons as stated in the open minutes	
1.2	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.3	To protect the privacy of natural persons including that of a deceased person	Section 7(2)(a)
1.4	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations) To prevent the disclosure or use of official information for improper gain or improper advantage	Section 7(2)(i) Section 7(2)(j)

1.6	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.7	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.8	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(h) Section 7(2)(i)
1.9	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	Section 7(2)(i)
1.10	To protect the privacy of natural persons	Section 7(2)(a)
1.11	To protect the privacy of natural persons	Section 7(2)(a)

Carried

8. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting with a prayer/karakia at 2.53pm.

Confirmed this 26th day of September 2024

His Worship the Mayor Vince Cocurullo (Chairperson)